

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 12.04.010, OBSTRUCTION ON STREETS, AND SECTION 12.04.080, CONSTRUCTION AND REPAIR–PERMITS REQUIRED–FEES–EXCEPTION, OF CHAPTER 12.04, STREETS, SIDEWALKS AND DRIVEWAYS GENERALLY, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 12.04.010, Obstruction on streets, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, is amended as follows:

12.04.010 Obstructions on streets, ALLEYS, SIDEWALKS, OR DRIVEWAYS WITHIN THE PUBLIC RIGHT-OF-WAY–DESIGNATION OF NUISANCE–PROSECUTION AS A MISDEMEANOR.

A. Except as otherwise provided by this ~~code~~ SECTION or other ~~city ordinance~~ PROVISION OF THIS CODE, no person shall erect, maintain or in any way cause an obstruction of any character in or upon any street, alley, ~~or~~ sidewalk OR DRIVEWAY within ANY PUBLIC RIGHT-OF-WAY OF the city.

B. A PERSON MAY OBSTRUCT A STREET, ALLEY, SIDEWALK OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY TO THE EXTENT PERMITTED BY A RIGHT-OF-WAY ENCROACHMENT PERMIT ISSUED BY THE CITY ENGINEER PURSUANT TO SECTION 12.04.080, SECTION 12.04.150, SECTION 12.04.230, OR SECTION 12.12.010 OF THIS CODE.

C. A PERSON MAY OBSTRUCT A STREET, ALLEY, SIDEWALK OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY FOR THE STORAGE OR PLACEMENT OF MATERIALS, EQUIPMENT, OR OTHER TANGIBLE PERSONAL PROPERTY THEREIN TO THE EXTENT PERMITTED BY A RIGHT-OF-WAY STORAGE PERMIT ISSUED BY THE CITY ENGINEER.

D. THE OBSTRUCTION OF ANY STREET, ALLEY, SIDEWALK OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY BY THE STORAGE OR PLACEMENT OF MATERIALS, EQUIPMENT, OR OTHER TANGIBLE PERSONAL PROPERTY THEREIN WITHOUT HAVING OBTAINED A RIGHT-OF-WAY STORAGE PERMIT FROM THE CITY ENGINEER, OR FOLLOWING THE EXPIRATION OF SUCH A PERMIT, SHALL CONSTITUTE A NUISANCE AND A MISDEMEANOR PUNISHABLE IN ACCORDANCE WITH THE PENALTY PROVISIONS OF SECTION 1.24.010 OF THIS CODE.

E. THE OBSTRUCTION OF ANY STREET, ALLEY, SIDEWALK OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY BY THE STORAGE OR PLACEMENT OF MATERIALS, EQUIPMENT OR OTHER TANGIBLE PERSONAL PROPERTY THEREIN IN ANY MANNER WHICH VIOLATES THE TERMS AND CONDITIONS OF A RIGHT-OF-WAY STORAGE PERMIT ISSUED BY THE CITY ENGINEER IN ACCORDANCE WITH CHAPTER 12.04 OF THIS CODE SHALL CONSTITUTE A NUISANCE AND A MISDEMEANOR PUNISHABLE IN ACCORDANCE WITH THE PENALTY PROVISIONS OF SECTION 1.24.010 OF THIS CODE.

F. THE PERFORMANCE OF ANY CONSTRUCTION, EXCAVATION, OR OTHER WORK WITHIN OR UPON ANY SIDEWALK, CURB AND GUTTER, DRIVEWAY, ROADWAY OR STREET WITHOUT HAVING OBTAINED A RIGHT-OF-WAY ENCROACHMENT PERMIT FROM THE CITY ENGINEER, OR FOLLOWING THE EXPIRATION OF A SUCH A PERMIT, SHALL CONSTITUTE A NUISANCE AND A MISDEMEANOR PUNISHABLE IN ACCORDANCE WITH THE PENALTY PROVISIONS OF SECTION 1.24.010 OF THIS CODE.

G. THE PERFORMANCE OF ANY CONSTRUCTION, EXCAVATION, OR OTHER WORK WITHIN OR UPON ANY SIDEWALK, CURB AND GUTTER, DRIVEWAY, ROADWAY OR STREET IN ANY MANNER WHICH VIOLATES THE TERMS AND CONDITIONS OF A RIGHT-OF-WAY ENCROACHMENT PERMIT ISSUED BY THE CITY ENGINEER IN ACCORDANCE WITH CHAPTER 12.04 OF THIS CODE SHALL CONSTITUTE A NUISANCE AND A MISDEMEANOR PUNISHABLE IN ACCORDANCE WITH THE PENALTY PROVISIONS OF SECTION 1.24.010 OF THIS CODE.

H. FOR THE PURPOSES OF CHAPTER 12.04 OF THIS CODE, THE PHRASE "MATERIALS, EQUIPMENT OR OTHER TANGIBLE PERSONAL PROPERTY" SHALL NOT INCLUDE ANY "MOTOR VEHICLE" OR "VEHICLE" AS DEFINED IN WYO. STAT. SECTION 31-1-101(A); NOR SHALL THE PHRASE INCLUDE REFUSE CONTAINERS SMALLER THAN TWO (2) CUBIC YARDS IN SIZE PLACED IN ACCORDANCE WITH CHAPTER 8.44 OF THIS CODE.

Section 2. That Section 12.04.080, Construction and repair-Permits required-Fees-Exception, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, is amended as follows:

12.04.080 Construction, and repair, AND STORAGE IN RIGHT-OF-WAY-Permits required- Fees-Exception.

A. RIGHT-OF-WAY ENCROACHMENT PERMIT. No person may construct, remove or repair any sidewalk, curb and gutter, driveway, roadway or street, or perform any EXCAVATION OR other work within the public right-of-way without first obtaining a right-of-way encroachment permit. Right-of-way encroachment permit and plan review fees for work in the public right-of-way shall be based on the valuation of the work and paid in accordance with the schedule of permit fees contained in Section 15.08.030. If the work to be done in the right-of-way is in conjunction with a building permit, a separate right-of-way encroachment permit is required.

~~B. Exception. None, unless waived specifically by the city engineer.~~

B. RIGHT-OF-WAY STORAGE PERMIT. THE CITY ENGINEER MAY ISSUE A RIGHT-OF-WAY STORAGE PERMIT FOR THE STORAGE OR PLACEMENT OF MATERIALS, EQUIPMENT OR OTHER TANGIBLE PERSONAL PROPERTY THEREIN SUBJECT TO SUCH TERMS AND CONDITIONS AS THE CITY ENGINEER MAY DETERMINE TO BE NECESSARY FOR THE PROTECTION OF THE PUBLIC HEALTH AND SAFETY. AN APPLICANT FOR A RIGHT-OF-WAY STORAGE PERMIT SHALL COMPLETE AN APPLICATION FORM PRESCRIBED BY THE CITY ENGINEER. THE CITY ENGINEER SHALL CHARGE OF FEE OF SEVEN DOLLARS AND FIFTY CENTS (\$7.50) FOR EACH DAY, OR PART OF A DAY, THAT THE PERMIT WILL BE IN EFFECT, BEGINNING WITH THE DATE OF ISSUANCE THROUGH THE DATE OF TERMINATION STATED ON THE PERMIT.

1. THE CITY ENGINEER SHALL NOT HAVE THE AUTHORITY TO ISSUE A RIGHT-OF-WAY STORAGE PERMIT TO AN APPLICANT WHO HAS RECEIVED A RIGHT-OF-WAY STORAGE PERMIT AT ANY TIME DURING THE PERIOD OF FIFTEEN (15) DAYS PRIOR TO DATE OF APPLICATION FOR A NEW PERMIT, IF THE NEW PERMIT WOULD ALLOW THE STORAGE OR PLACEMENT OF ANY MATERIALS, EQUIPMENT, OR OTHER TANGIBLE PERSONAL PROPERTY AT A LOCATION WITHIN THREE HUNDRED (300) FEET OF THE PERMITTED LOCATION UNDER THE PRIOR PERMIT.

C. EACH PERMIT ISSUED PURSUANT TO THIS SECTION SHALL BE CONSPICUOUSLY POSTED AT THE SITE DESIGNATED IN THE PERMIT DURING THE ENTIRE PERIOD THAT SAID PERMIT IS EFFECTIVE.

Section 3. This ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)

Richard L. Kaysen, Mayor

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle